

1 ENGROSSED SENATE AMENDMENTS
TO
2 ENGROSSED HOUSE
BILL NO. 2992

By: Boles, Chapman, Cornwell,
Hildebrant, Staires,
Dobrinski, Clinton,
Dollens, Wolfley, Alonso-
Sandoval, Menz, Harris,
Munson, Adams, and Waldron,
of the House

and

Green, Seifried, Mann,
Coleman, and Prieto of the
Senate

11 An Act relating to the Corporation Commission;
12 creating the Data Center Customer Protection Act of
2026; defining terms; requiring governing bodies
13 provide certain protections regarding rates;
requiring electric *** exclusive jurisdiction;
14 requiring electric suppliers comply to act; providing
for codification; providing an effective date; and
15 declaring an emergency.

17 AUTHOR: Add the following House Coauthors: Stewart, Hill,
Pogemiller, Turner, Kelley, McCane, Tedford, Rosecrants,
18 Hays, and Grego

19 AUTHOR: Add the following Senate Coauthors: Deever, Kirt,
Hamilton, and Nice

21 AMENDMENT NO. 1. Page 1, line 24, insert after the word "Customer"
and before the word "Protection", the word
22 "Ratepayer"

23 AMENDMENT NO. 2. Page 4, line 4, delete after the word "the" and
before the word "for", the word "utility" and
24 insert the words "electric supplier"

1 AMENDMENT NO. 3. Page 5, line 6 1/2, insert a new Section 7 to read

2 "SECTION 7. NEW LAW A new section of law to be codified
3 in the Oklahoma Statutes as Section 906 of Title 17, unless there is
4 created a duplication in numbering, reads as follows:
5

6 A. Any large load customer, or any developer, owner, or entity
7 acting on behalf of a large load customer, that plans to purchase
8 any land in this state outside of an industrial development project,
9 as such term is defined in Section 853 of Title 74 of the Oklahoma
10 Statutes, or a municipality, shall be required to notify the
11 Corporation Commission, the county commissioners of the county in
12 which the land is to be purchased, and any property owners within a
13 five (5) mile radius of the proposed land purchase at least sixty
14 (60) days before the proposed land purchase transaction is to take
15 place. Such notice shall be given by publication in a newspaper of
16 general circulation, be published in the county where the land is to
17 be purchased, and include information for a public meeting. Such
18 notice by publication shall be published in two consecutive weekly
19 issues of the newspaper, with the first publication to be at least
20 thirty (30) days prior to the date set for the public meeting.

21 B. Any large load customer, or any developer, owner, or entity
22 acting on behalf of a large load customer, who fails to provide
23 proper notice as required by this section, shall be subject to an
24

1 administrative penalty not to exceed One Thousand Five Hundred
2 Dollars (\$1,500.00) per day, per violation."

3 and renumber subsequent sections

4 and amend the title to conform

5 Passed the Senate the 28th day of April, 2026.

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Presiding Officer of the Senate

9 Passed the House of Representatives the ____ day of _____,
10 2026.

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Presiding Officer of the House
of Representatives

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10 An Act relating to the Corporation Commission;
11 creating the Data Center Customer Protection Act of
12 2026; defining terms; requiring governing bodies
13 provide certain protections regarding rates;
14 requiring electric suppliers establish and maintain
15 certain separate terms, conditions and tariffs;
16 detailing terms and conditions; requiring certain
17 term of service be ten years; making certain
18 exception; stating applicability; authorizing the
19 promulgation of rules; granting certain exclusive
20 jurisdiction; requiring electric suppliers comply to
21 act; providing for codification; providing an
22 effective date; and declaring an emergency.

23 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

24 SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 900 of Title 17, unless there is
created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Data Center
Customer Protection Act of 2026".

1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 901 of Title 17, unless there is
3 created a duplication in numbering, reads as follows:

4 As used in the Data Center Customer Ratepayer Protection Act of
5 2026:

6 1. "Applicable governing body" means, with respect to any
7 retail electric supplier, the governmental, regulatory, or self-
8 governing authority having lawful jurisdiction over the
9 construction, ownership, interconnection, planning, safety, or
10 operation of such electric supplier, including but not limited to,
11 the Corporation Commission, a municipal governing body, a rural
12 electric cooperative's board of trustees, or other nonjurisdictional
13 supplier;

14 2. "Cost causation" means customers responsible for the
15 electric supplier incurring the cost should be allocated their
16 equitable share of those costs;

17 3. "Electric supplier" means any entity providing electric
18 service within the state, including investor-owned utilities,
19 electric cooperatives, municipal electric utilities, and public
20 power utilities;

21 4. "Large load customer" means new data centers, new
22 cryptocurrency mining operations and new facilities whose primary
23 function is artificial-intelligence computing facilities that
24 contract with an electric supplier to add seventy-five (75)

1 megawatts or greater electric load per facility or in aggregate
2 behind a single point of interconnection to an electric supplier's
3 load after July 1, 2026. It does not include residential,
4 commercial, agricultural, or industrial ratepayers, or those
5 entities that build generation for behind-the-meter projects; and

6 5. "Residential customer" means a customer receiving retail
7 electric service for household purposes as established by the
8 applicable electric supplier.

9 SECTION 3. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 902 of Title 17, unless there is
11 created a duplication in numbering, reads as follows:

12 Any applicable governing body responsible for reviewing electric
13 supplier rates shall ensure that residential, commercial and
14 industrial customers are protected from paying unjust rates
15 resulting directly from electric service to large load customers.
16 The applicable governing body shall ensure that all rates are fair,
17 just and reasonable, and costs and revenues are assigned and
18 allocated among customers in accordance with cost causation
19 principles.

20 SECTION 4. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 903 of Title 17, unless there is
22 created a duplication in numbering, reads as follows:

23 All electric suppliers shall establish and maintain separate
24 terms and conditions of electric service applicable to any large

1 load customer and shall create and maintain separate tariffs
2 applicable to such large load customers. These terms, conditions,
3 and tariffs shall include credit requirements and any other measures
4 necessary to ensure that such customers reimburse the utility for
5 all costs fairly allocated to them under Section 3 of this act,
6 including costs incurred to directly serve the customer that may
7 remain unrecovered if the customer departs the system or materially
8 reduces load. The term of service for a large load customer shall
9 be at least ten (10) years. For any public power utility using tax-
10 exempt municipal financing, the term of the agreement shall be the
11 lesser of ten (10) years or the applicable Internal Revenue Service
12 Guideline.

13 SECTION 5. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 904 of Title 17, unless there is
15 created a duplication in numbering, reads as follows:

16 This act applies to all retail electric suppliers serving load
17 in this state, including investor-owned utilities regulated by the
18 Corporation Commission, electric cooperatives, municipal electric
19 utilities, and public power utilities.

20 SECTION 6. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 905 of Title 17, unless there is
22 created a duplication in numbering, reads as follows:

23 The Oklahoma Corporation Commission may promulgate rules within
24 its authority and jurisdiction to effectuate the provisions of this

1 act. For electric suppliers subject to the jurisdiction of the
2 Oklahoma Corporation Commission for regulation of their electric
3 rates, the Oklahoma Corporation Commission shall have exclusive
4 jurisdiction to enforce the provisions of this act within its
5 authority. Retail electric suppliers shall comply with this act as
6 a condition of providing service to large load customers.

7 SECTION 7. This act shall become effective July 1, 2026.

8 SECTION 8. It being immediately necessary for the preservation
9 of the public peace, health or safety, an emergency is hereby
10 declared to exist, by reason whereof this act shall take effect and
11 be in full force from and after its passage and approval.

12 Passed the House of Representatives the 23rd day of March, 2026.

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14 _____
15 Presiding Officer of the House
16 of Representatives

17 Passed the Senate the _____ day of _____, 2026.

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19 _____
20 Presiding Officer of the Senate
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